

25VECV00225 25VECV00225

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV00225 Hearing Date: September 15, 2026 Dept: NWI

25VECV00225 15910 ENCINO PLAZA, LLC v.

HI-TECH BUILDERS, INC., et al.

September 15, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Deem Requests for Admissions (Set
One) Admitted

I.

Background

This is a breach of contract action

arising out of the written commercial lease agreement between Plaintiff 15910

Encino Plaza, LLC ("Plaintiff") and Defendants Hi-Tech Builders, Inc. ("HTB"),

David Lachyani ("Lachyani"), and DOES 1 through 20 (collectively,

"Defendants"). On January 16, 2025, Plaintiff filed the operative Complaint

against Defendants, asserting causes of action for: (1) Breach of Lease and (2)

Breach of Guaranty.

On April 7, 2025, default was entered

against HTB and Lachyani. On April 21, 2025, Plaintiff dismissed the Doe

Defendants without prejudice.

On October 31, 2025, Plaintiff and

Defendants entered into a Stipulation to Set Aside Default. On December 1,

2025, HTB and Lachyani filed a joint Answer to the Complaint.

On July 22, 2026, Plaintiff filed the instant Motion to Deem Requests for Admissions (Set One) Admitted against Lachyani. Any opposition would have been due on September 1, 2026. To date, no opposition has been filed.

II. Discussion

“Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc., § 2033.010.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared” (Code Civ. Proc., § 2033.250, subd. (a).) However, if the request for admissions is served by electronic service, a responding party has an additional two (2) court days to respond. (Code of Civ. Proc., § 1010.6, subd. (a)(3)(B).) Likewise, if request for admissions is served by U.S. mail, a responding party has an additional five (5) calendar days to respond. (Code Civ. Proc., § 1013, subd. (a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280, subd. (a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff moves for an order deeming the truth of the matters specified in Plaintiff's Requests for Admissions (“RFA”) (Set One) served upon Lachyani admitted on the grounds that Lachyani has completely failed to respond RFAs at issue.

Here, Plaintiff served Lachyani with

the RFAs on or about April 10, 2026 via electronic service to defense counsel's email address listed on Lachyani's Answer. (Martinez Decl., ¶2, Exs. A-B.) As such, Lachyani's responses were due by May 13, 2026, which is thirty (30) calendar days plus an additional two (2) court days after service. Although not required, Plaintiff sent an email to defense counsel indicating that Lachyani failed to serve its responses and requesting responses no later than July 10, 2026. (Martinez Decl., ¶6, Ex. C.) On June 30, 2026, Michael Spiegel responded that he was no longer representing Lachyani and sent the discovery to Lachyani to provide to his new attorney. (Id., ¶7, Ex. D.)

At the time of the filing of the present motion, no substitution of attorney had been filed on behalf of Lachyani. (Martinez Decl., ¶8.) However, Lachyani filed an substitution of attorney on August 13, 2026, which was approximately three weeks before the opposition to the present motion was due. (Substitution of Atty, 8/13/26.) Moreover, Lachyani's newly retained counsel of record, Guinevere Malley filed a declaration attesting to serving responses to the RFAs at issue on September 8, 2026. (Malley Decl., ¶5.) Mr. Malley also avers that lack of response was due to inadvertence, mistake and/or excusable neglect. (Id., ¶6.) In fact, Lachyani avers that former counsel of record, Mr. Spiegel never informed him about the RFAs being served on April 10, 2026. (Lachyani Decl., ¶¶3-4.)

Therefore, an order deeming the RFAs at issue admitted against Lachyani is unwarranted.

Request for Discovery Sanctions

"It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).) Pursuant to the California Rules of Court, Rule 3.1348, subdivision (a), "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, Rule 3.1348, subd. (a).)

Pursuant to

the California Rules of Court, Rule 3.1348, subdivision (a), "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, Rule 3.1348, subd. (a).) "[T]he burden is on the moving party to show (by declarations) the facts essential to an award of sanctions: e.g., the opposing party's failure to make discovery, reasonable efforts to resolve the matter informally, etc. The burden then shifts to the party against whom sanctions are being sought to establish some excuse or justification for the conduct in question." (Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group June 2021 Update) ¶ 8:2015.)

Here, Plaintiff's counsel of record seeks \$1,067.50 in discovery sanctions against Lachyani consisting of: (1) 1.5 hours for drafting the present motion; (2) 1.0 for reviewing the opposition and drafting a reply brief; and (3) 1.0 hour for attending the hearing on the motion at an hourly rate of \$305.00/hr. As discussed above, Lachyani retained new counsel who declares under penalty of perjury that responses have been served prior to the hearing on the present motion and attesting to lack of response being due to inadvertence, mistake and/or excusable neglect. Lachyani also attests to lack of notice from his former counsel regarding the RFAs at issue. Thus, the Court finds that it would be unjust to impose sanctions at this time.

III.

Conclusion

Accordingly, Plaintiff 15910 Encino Plaza, LLC's Motion to Deem Requests for Admissions (Set One) Admitted is DENIED. The Request for Discovery Sanctions is also DENIED.

Plaintiff 15910 Encino Plaza, LLC to give notice.